



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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BY: **MA. JIMENA B. JUTILO**
SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH 17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 41
Series of 2026

"AN ORDINANCE PRESCRIBING RULES AND REGULATIONS FOR THE PROTECTION, PRESERVATION, AND MAINTAINANCE OF IRRIGATION CANAL LINING IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR, AND IMPOSING PENALTIES FOR VIOLATIONS THEREOF"

Author: Hon. Rencio P. Valeroso

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Municipality of Carmen recognizes agriculture as a primary source of livelihood for its constituents and acknowledges the vital role of irrigation systems in ensuring sustainable agricultural productivity and food security;

WHEREAS, irrigation canals are essential for agricultural productivity and food security in the Municipality of Carmen, Surigao del Sur;

WHEREAS, the improper use, unauthorized alteration, obstruction, destruction, or damage to irrigation canal linings adversely affects water flow, diminishes irrigation efficiency, increases maintenance costs and jeopardizes the welfare of farmers and the agricultural sector as a whole;

WHEREAS, the integrity of canal linings must be maintained to prevent water loss, soil erosion and damage to infrastructure;

WHEREAS, there is a pressing need to safeguard these irrigation facilities from misuse, obstruction and damage caused by unauthorized human activities;

WHEREAS, it is the duty of the Local Government Unit of Carmen to enact measures that protect public infrastructure, promote responsible use of communal resources and ensure the long-term sustainability of irrigation facilities for the benefit of present and future generations;

WHEREAS, the establishment of clear rules and regulations, coupled with the imposition of appropriate penalties for violations is necessary to deter destructive practices and encourage community participation in the protection, preservation and maintenance of irrigation canal linings;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Title- This Ordinance shall be known as the "Irrigation Canal Protection and Lining Regulation Ordinance of the Municipality of Carmen, Surigao del Sur."

SECTION 2. Coverage- This ordinance shall apply to all national, communal and locally constructed irrigation canals and their lining within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur.

SECTION 3. Definition of Terms- For purposes of this ordinance, the following term shall mean.

- 1) Irrigation Canal- a waterway constructed to deliver water for agricultural use.
- 2) Canal Lining- the concrete, stone, or masonry covering of canal walls and beds to reduce water seepage.
- 3) Easement Area- the three (3) meter buffer zone from both sides of the canal reserved for inspection and maintenance.
- 4) Obstruction- any act that blocks, diverts, or limits the flow of irrigation water. Encroachment – unauthorized use, cultivation, or construction within the canal or its easement zone.

SECTION 4. Prohibited Acts- It shall be unlawful for any person or group to:

- 1) Damage, remove, or tamper with any portion of the irrigation canal lining.
- 2) Dump soil, rocks, garbage or any waste materials within or along the canal and its easement area.
- 3) Construction houses, fences, pigpens or any structure within the three (3) meters of either side of the canal.
- 4) Divert or obstruct the natural flow of irrigation water without prior approval from the National Irrigation Administration (NIA) or the Municipal Agriculture Office (MAO).

- 5) Wash vehicles, bathe animals or discharge waste or chemicals into the canal.
- 6) Plant trees or crops whose roots may damage the canal lining or block maintenance access.
- 7) Use canal water for non-agricultural purposes without proper authority.

SECTION 5. Duties and Responsibilities of the Municipal Agriculture Office (MAO), Barangay Council and Irrigators Association (IA).

- 1) Municipal Agriculture Office (MAO) shall:
 - a. Supervise and monitor canal maintenance and protection.
 - b. Coordinate with NIA and Irrigators’ Associations in enforcement.
 - c. Conduct regular inspection and public awareness activities.
- 2) Barangay Council shall:
 - a. Assist in monitoring and reporting violations.
 - b. Pass barangay resolutions supporting this ordinance.
- 3) Irrigators’ Associations shall:
 - a. Maintain canal cleanliness and integrity within their service area.
 - b. Report any violation or damage to the MAO or Barangay Officials.

SECTION 6. Enforcement Authority- The Municipal Agriculture Office, through the Municipal Agriculture Technician assigned to irrigation, in coordination with the Barangay Council, Municipal Engineering Office and NIA, shall enforce this ordinance.

SECTION 7. Penalties- Any person violating the provision of this ordinance shall be subject to the following penalties:

First Offense	-	A fine of Five Hundred Pesos (Php500.00)
Second Offense	-	A fine of One Thousand Pesos (Php1,000.00)
Third and Subsequent Offenses	-	A fine of Two Thousand Five Hundred Pesos (Php2,500.00) or imprisonment of up to thirty (30) days, or both, at the discretion of the court

In all cases, violators shall also repair or shoulder the cost of damage caused to the canal lining or irrigation system.

SECTION 8. Administrative Sanctions- If the violators are a member of an Irrigators’ Association, the association may impose additional sanctions, such as suspension of irrigation service or revocation of membership privileges subject to NIA guidelines.

SECTION 9. Appropriation- Funds necessary for the implementation of this ordinance shall be charged against the Municipal Agriculture Office budget or other available municipal funds, subject to existing accounting and auditing rules.

SECTION 10. Separability Clause- If any part or provision of this ordinance is declared invalid or unconstitutional, the remaining provisions not be affected thereby shall continue to be in full force and effect.

SECTION 11. Repealing Clause- All ordinances, resolutions, executive orders, rules and regulations inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 12. Effectivity- This ordinance shall take effect fifteen (15) days after its approval and posting in three (3) conspicuous places in the Municipality of Carmen, Surigao del Sur.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEBOSO
Municipal Mayor
3-27-2026